

the *written instrument* that double portions were intended, no presumption arises, and therefore parol evidence cannot be let in to contradict the written instrument (*e*). Where there is no *intrinsic* evidence to the contrary the presumption arises, and then this presumption, like any other, may be rebutted by *extrinsic* or *parol* evidence, and of course counter evidence may be given to support and fortify the original presumption (*f*). There is no doubt that sometimes this presumption of law defeats the real intention, but as a general rule it effectuates the intention, and were it not for the doctrine under consideration, the provisions for families would often be most unjust, and the farthest from the settlor's actual wishes (*g*).

[*404] *5. **Subjects must be ejusdem generis.**—Ademption and Satisfaction are held to apply only where the properties which are the subject of the two gifts are *ejusdem generis*. A legacy of *money* will not be adeemed by a subsequent settlement of *land*; and a covenant to settle specific lands will not be satisfied by a subsequent settlement of money (*a*). A bequest of 10,000*l.* was not adeemed by a subsequent settlement of a beneficial lease (*b*), and a legacy of 500*l.* was not adeemed by a subsequent gift of stock in

(*e*) *Hall v. Hill*, 1 D. R. & W. 94; 1 Conn. & Laws. 120, in which all the previous cases are reviewed.

(*f*) Such is the result of the numerous authorities. The principal cases are *Kirk v. Eddowes*, 3 Hare, 509; *Booker v. Allen*, 2 R. & M. 270; *Lloyd v. Harvey*, *ib.* 310; *Weall v. Rice*, 2 R. & M. 251; *Dawson v. Dawson*, 4 L. R. Eq. 511, *per* V. C. Wood; *Trimmer v. Bayne*, 7 Ves. 508; *Rosewell v. Bennet*, 3 Atk. 77; *Powys v. Mansfield*, 3 M. & Cr. 374, 378, *per* Lord Cottenham; *Monck v. Lord Monck*, 1 B. & B. 298; *Hartopp v. Hartopp*, 17 Ves. 184; *Ellison v. Cookson*, 1 Ves. jun. 100; *Robinson v. Whitley*, 9 Ves. 577; *Pole v. Lord Somers*, 6 Ves. 309; *Wallace v. Pomfret*, 11 Ves. 542; *Thellusson v. Woodford*, 4 Mad. 420; *Bell v. Coleman*, 5 Mad. 22; *Biggleston v. Grubb*,

2 Atk. 48; *Hoskins v. Hoskins*, Pr. Ch. 263; *Chapman v. Salt*, 2 Vern. 646; *Shudal v. Jekyll*, 2 Atk. 516; *Hale v. Acton*, 2 Ch. Rep. 35; *Cooper v. Cooper*, 8 L. R. Ch. App. 819; *Curtin v. Evans*, 9 I. R. Eq. 653; [*Tussaud v. Tussaud*, 9 Ch. D. 363; *Re Pollock*, 28 Ch. D. 552.]

(*g*) *Montefiore v. Guedalla*, 1 De G. F. & J. 103, *per* L. J. Turner.

(*a*) *Bellasis v. Uthwatt*, 1 Atk. 428, *per* *Cur.*; *Bengough v. Walker*, 15 Ves. 512, *per* *Cur.*; *Chichester v. Coventry*, 2 L. R. H. L. 96, *per* *Cur.*; and see *Barrett v. Beckford*, 1 Ves. sen. 520; *Masters v. Masters*, 1 P. W. 423; *Cooper v. Cooper*, 8 L. R. Ch. App. 819; [*Lewis v. Lewis*, 11 I. R. Eq. 340.]

(*b*) *Grave v. Lord Salisbury*, 1 Bro. C. C. 425.